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Case Number: 24PSCV01004 Hearing Date: July 22, 2026 Dept: H

De La Rosa v. Chen,

et al., Case

No. 24PSCV01004

ORDER ON

DISCOVERY MOTIONS

1. Plaintiff Juan Daniel Aceituno De La

Rosa's unopposed Motion to Compel Defendant Paradise Specialized Care to

Provide Further Responses to Request for

Admissions, Set One is DENIED. Sanctions are declined.

2. Plaintiff Juan Daniel Aceituno De La

Rosa's unopposed Motion to Compel Defendant Paradise Specialized Care to

Provide Further Responses to Form

Interrogatories, Set One is GRANTED in part (i.e., as to Nos. 3.7, 12.1, 14.1, 20.1, 20.2 and 20.5-20.8) and DENIED in part (i.e., as to Nos. 7.1-7.3, 12.2 and 17.1). Paradise is ordered to provide further responses

to Plaintiff's Form Interrogatories, Set One, Nos. 3.7,

12.1, 14.1, 20.1, 20.2 and 20.5-20 within 20 days from the date of the notice of ruling. Sanctions are imposed against

Paradise in the reduced amount of \$585.00 and are payable within

30 days from the date of the notice of ruling.

3. Plaintiff Juan Daniel Aceituno De La

Rosa's unopposed Motion to Compel Defendant Paradise Specialized Care to

Provide Further Responses to Special

Interrogatories, Set One is GRANTED in part (i.e., as to No. 13) and DENIED in part

(i.e., as to Nos. 14-18). Paradise is ordered to provide a further response to

Plaintiff's Special Interrogatories, Set One, No. 13 within 20 days from the date of the

notice of ruling. Sanctions are declined.

4. Plaintiff Juan Daniel Aceituno De La

Rosa's unopposed Motion to Compel Defendant Paradise Specialized Care to Provide Further Responses to Special Interrogatories, Set Two is GRANTED in full. Paradise is ordered to provide further responses to Plaintiff's Special Interrogatories, Set Two, Nos. 28-39 within 20 days from the date of the notice of ruling. Sanctions are imposed against Paradise in the reduced amount of \$585.00 and are payable within 30 days from the date of the notice of ruling.

5. Plaintiff Juan Daniel Aceituno De La

Rosa's unopposed Motion to Compel Defendant Paradise Specialized Care to Provide Further Responses to Request for Production of Documents, Set One is GRANTED in part (i.e., as to Nos. 7-17, 19-26 and 29-36) and DENIED in part (i.e., as to No. 18). Paradise is also ordered to produce all responsive documents to Nos. 1-6, 27 and 28. Paradise is ordered to provide further responses, and documents responsive, to Plaintiff's Request for Production of Documents, Set One Nos. 7-17, 19-26 and 29-36 within 20 days from the date of the notice of ruling. Paradise is ordered to provide all responsive documents to Nos. 1-6, 27 and 28 within 20 days from the date of the notice of ruling. The Court declines to award Code of Civil Procedure section 203.050 sanctions. Sanctions are imposed against Paradise in the reduced amount of \$585.00 and are payable within 30 days from the date of the notice of ruling.

6. Plaintiff Juan Daniel Aceituno De La

Rosa's unopposed Motion to Compel Defendant Qiang Chen to Provide Further Responses to Form Interrogatories, Set Two is DENIED in part (i.e., as to No. 16.2) and otherwise GRANTED. Chen is ordered to provide further responses to Plaintiff's Form Interrogatories, Set Two, Nos. 16.1, 16.3-16.5 and 16.8, within 20 days from the date of the notice of ruling. Sanctions are imposed against Chen in the reduced amount of \$585.00 and are payable within 30 days from the date of the

notice of ruling.

7. Plaintiff Juan Daniel Aceituno De La

Rosa's unopposed Motion to Compel Defendant Qiang Chen to Provide Further Responses to Request for Production of Documents, Set Two is GRANTED.

Chen is ordered to provide a further response within 20 days from the date of the notice of ruling clarifying that production is being made in full and to produce all responsive documents to No. 50. The Court declines to award Code of Civil Procedure section 203.050 sanctions.

Sanctions are imposed against Paradise in the reduced amount of \$585.00 and are payable within 30 days from the date of the notice of ruling.

Background

Plaintiff

Juan Daniel Aceituno De La Rosa

("Plaintiff") alleges that he sustained injuries and damages in an April 18, 2022 motor vehicle collision.

On March 29, 2024, Plaintiff filed a complaint, asserting causes of action against Qiang Chen ("Chen"), Nice Day Transportation Inc. ("Nice Day"), and Does 1-50 for: (1) General Negligence and (2) Motor Vehicle.

On May

23, 2025, Plaintiff filed an "Amendment to Complaint," wherein Paradise Specialized Care ("Paradise") was substituted in for Doe 1.

A

Post-Mediation Status Conference/Case Management Conference is set for April 23, 2026.

1. Motion to Compel Furthers Re:

Requests for Admissions, Set One Re: Paradise

Legal Standard

"[T]he

party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

(1) An answer to a particular request is evasive or incomplete.
(2) An objection to a particular request is without merit or too general.”
(Code Civ. Proc., § 2033.290, subd. (a).)

The motion must include a meet and confer declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2033.290, subd. (b)(1).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2033.290, subd. (b)(2).)

Notice of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Discussion

Plaintiff

moves the Court for an order compelling Paradise to provide further responses to Plaintiff’s Requests for Admissions, Set One (i.e., Nos. 4-13, 17-23 and 26). Plaintiff also seeks sanctions against Paradise and its counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00. [FN1]

Plaintiff’s

counsel Sarin Goncuian (“Goncuian”) represents, and/or the accompanying exhibits reflect, as follows:

On

September 22, 2025, Plaintiff served the subject discovery. (Goncuian Decl., ¶ 7, Exh. 1.) On November 7, 2025, Paradise served unverified responses. (Id., ¶ 8, Exh. 2.) On February 18, 2026, Paradise provided verifications. (Id., ¶ 9, Exh. 3.) On March 30, 2026, Goncuian sent a meet and confer letter to Paradise's then-counsel, requesting further responses by April 6, 2026. (Id., ¶ 13, Exh. 7.) On April 2, 2026, Paradise's then-counsel provided a 30-day extension on any motion deadline. (Id., ¶ 15, Exh. 8.) On May 4, 2026, Paradise's then-counsel provided another 30-day extension on any motion deadline. (Id.). On May 11, 2026, Plaintiff requested an Informal Discovery Conference ("IDC"). (Id., ¶¶ 15 and 16, Exh. 8.) On May 26, 2026, the Court advised of its unavailability for an IDC and directed Plaintiff to file any discovery motions as appropriate. (Id., ¶¶ 17, Exh. 9.) The motion followed, on June 3, 2026.

The

requests in issue are Nos. 4-13, 17-23, and 26. After interposing Objections, Paradise provided the following identical substantive response to each of these requests: "A reasonable inquiry concerning the matter in this particular request has been made, and the information known or readily obtainable is insufficient to enable Responding Party to admit this matter."

Paradise's

response is substantially compliant with Code of Civil Procedure section 2033.220, subdivision (c). No further responses are warranted. The Court declines Plaintiff's request for sanctions.

2.

Motion to Compel Furthers Re: Form Interrogatories, Set One Re: Paradise

Legal Standard

"[T]he propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required

specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

The motion must include a meet and confer declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040; 2030.300, subd. (b)(1).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2030.300, subd. (b)(2).)

Notice of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. . .” (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

“The court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Discussion

Plaintiff

moves the Court for an order compelling Paradise to provide further responses to Plaintiff’s Form Interrogatories, Set One (i.e., Nos. 3.7, 7.1-7.3, 12.1, 12.2, 14.1, 20.2 and 20.5-20.8).[FN2] Plaintiff also seeks sanctions against Paradise and its counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00. [FN3]

See synopsis of Motion #1.

Paradise’s

objections only response to No. 3.7 is not well-taken; at any rate, by failing to oppose the motion, Paradise has not met its burden of justifying its objections pursuant to Coy, supra, 58 Cal.2d at 220-221. Further, this is a Judicial Council interrogatory developed and approved pursuant to Code of Civil Procedure section 2033.710. Paradise must provide a response that is "as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2030.220, subd. (a)). A further, substantive response addressing all subparts is warranted.

Paradise

responded "no" in response to No. 7.1 (i.e., asking it if it "attributed any loss of or damage to a vehicle or other property to the INCIDENT"); as such, no further response is warranted as to No. 7.1 or as to Nos. 7.2 and 7.3.

While Paradise has provided substantive response to No. 12.1, it has failed to address each subpart. A further response is warranted. No further response, however, is warranted as to No. 12.2, since it denied interviewing any individual concerning the Incident "[o]ther than Defendants."

Further responses to Nos. 14.1, 20.1, 20.2, and 20.5-20.8 are warranted, as Paradise's reference to the Traffic Collision Report is improper. (Code Civ. Proc., § 2030.220, subd. (a).)

As to No. 17.1, Plaintiff asserts that if further responses to the Requests for Admissions are ordered, then No. 17.1 must be supplemented. No further response to No. 17.1 is warranted, based on the Court's ruling on Motion #1.

Again, the motion is granted in part (i.e., as to Nos. 3.7, 12.1, 14.1, 20.1, 20.2, and 20.5-20.8) and denied in part (i.e., as to Nos. 7.1-7.3, 12.2, and 17.1). Paradise is ordered to provide further responses to Plaintiff's Form Interrogatories, Set One, Nos. 3.7, 12.1, 14.1, 20.1, 20.2 and 20.5-20 within 20 days from the date of the notice of ruling.

Sanctions

Plaintiff seeks

sanctions against Paradise and its now-former counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00 [calculated as follows: 1 hour reviewing

responses and meeting/confering, plus 1 hour preparing separate statement and motion, plus 1 hour preparing declaration, plus 2 hours reviewing opposition, plus 2 hours preparing reply, plus 1 hour attending hearing at \$650.00/hour, plus filing fees/costs of \$75.80 (Note: This totals \$5,275.80).]

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$585.00 (i.e., 1.5 hours at \$350.00/hour, plus \$60.00 filing fee). Sanctions are payable by Paradise within 30 days from the date of the notice of ruling.

3. Motion to Compel Furthers Re:

Special Interrogatories, Set One Re: Paradise

Legal Standard

See Motion #2.

Discussion

Plaintiff

moves the Court for an order compelling Paradise to provide further responses to Plaintiff's Special Interrogatories, Set One (i.e., Nos. 13-18). Plaintiff also seeks sanctions against Paradise and its counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00. [FN4]

See synopsis of Motion #1.

Paradise's "not applicable" substantive response to No. 13 is not well-taken, inasmuch as the term "YOU" was previously defined to mean "Responding Party (Defendant PARADISE SPECIALIZED CARE), including, Responding Party's agents, representatives, employees, attorneys, attorney's agents, insurance carriers, insurance carriers' agents, and investigators." A further response is warranted.

The

Court determines that Plaintiff's meet and confer as to Nos. 14-18 was deficient. Goncuian's March 30, 2026 letter addressed these interrogatories as follows: "14-18: These had objections only and no substantive

responses. You confirmed that you have paid for an investigation of Plaintiff in your responses to Form Interrogatories and Requests for Production of Documents. There is no reason why you cannot respond to these interrogatories. Please amend accordingly.” Plaintiff made no effort to address any of Paradise’s objections. No further responses are warranted under the circumstances.

Again, the motion is granted in part (i.e., as to No. 13) and otherwise denied (i.e., as to Nos. 14-18). Paradise is ordered to provide a further response to Plaintiff’s Special Interrogatories, Set One, No. 13 within 20 days from the date of the notice of ruling.

The
Court declines Plaintiff’s sanctions request.

4. Motion to Compel Furthers Re:
Special Interrogatories, Set Two Re: Paradise

Legal Standard

See Motion #2.

Discussion

Plaintiff
moves the Court for an order compelling Paradise to provide further responses to Plaintiff’s Special Interrogatories, Set Two (i.e., Nos. 28-39). Plaintiff also seeks sanctions against Paradise and its counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00. [FN5]

See synopsis of Motion #1.

Paradise’s
objection-only responses to Nos. 31-37 and 39 are not well-taken; at any rate, by failing to oppose the motion, Paradise has not met its burden of justifying its objections pursuant to Coy, supra, 58 Cal.2d at 220-221. Further responses are warranted.

No. 30
asks Paradise if it maintains records of all drug and alcohol testing collection efforts while Chen was under its employment. After interposing

objections, Paradise responded that, at the time it was operating, it complied with all state and federal regulations regarding the administration of drug tests on commercial drivers working in the course and scope of their employment with Paradise. This response fails to answer the call of the question—Plaintiff is not asking whether or not Paradise complied with state and federal regulations regarding drug test administration, but whether it maintains records of this testing as to Chen. A further response is warranted.

Paradise's

"does not recall" responses to Nos. 28, 29, and 38 do not comport with Code of § 2030.220, subdivision (c). Further responses are warranted.

The motion is granted in full. Paradise is ordered to provide further responses to Plaintiff's Special Interrogatories, Set Two, Nos. 28-39 within 20 days from the date of the notice of ruling.

Sanctions

Plaintiff seeks

sanctions against Paradise and its now-former counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00 [see calculation in Motion #2]. The Court will award sanctions in the reduced amount of \$585.00 [see calculation in Motion #2]. Sanctions are payable by Paradise within 30 days from the date of the notice of ruling.

5. Motion to Compel Furthers Re:

Request for Production of Documents, Set One Re: Paradise

Legal Standard

"[T]he demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance

with the demand is incomplete.

(2) A representation of

inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response

is without merit or too general."

(Code Civ. Proc., § 2031.310,

subd. (a).)

The motion must include a meet and confer declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).)

A

motion to compel further responses to a demand for inspection or production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) If the moving party has shown good cause for the production of documents, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

Notice

of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2031.310, subd. (c).)

“[T]he

court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Discussion

Plaintiff

moves the Court for an order compelling Paradise to provide further responses to Plaintiff’s Request for Production of Documents, Set One (i.e., Nos. 1-14 and 16-36) [FN6].

Plaintiff also seeks sanctions against Paradise and its counsel of record, Snyder Burnett Egerer, LLP in the amount of \$39,275.80. [FN7]

See synopsis of Motion #1.

Paradise

advised, in its substantive response to Nos. 1-6, 11, 16, 17, 27, and 28, that it would produce documents. No documents, however, were produced. Additionally, while Paradise advised in response to Nos. 1-6, 27, and 28 that it would “comply in full,” its response to Nos. 11, 16, and 17 appear to be qualified. Paradise is ordered to provide further responses and responsive documents to Nos. 11, 16, and 17, clarifying whether or not production is being made in full and, if not, to provide a privilege log for any withheld documents. Paradise is ordered to produce all responsive documents to Nos. 1-6, 27, and 28.

Paradise's

“Not applicable” response to No. 18 is adequately responsive to the request (i.e., asking “[i]f YOU contend that the SUBJECT COLLISION did not cause Plaintiff to suffer harm, please produce all DOCUMENTS which YOU allege support this contention”). No further response is warranted.

Paradise's

responses to Nos. 7-10, 12-15, 21, 23, and 26 are insufficient, inasmuch as they reflect non-compliance with Code of Civil Procedure section 2031.230 (i.e., “[a] representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item”). Additionally, it is unclear whether or not Paradise is withholding any responsive documents on the basis of privilege; if it is, then Paradise must provide a privilege log for any withheld documents.

Paradise, after

interposing objections and asserting attorney client privilege and work product doctrine in response to No. 22, seemingly intended to provide a substantive response, but none was provided. By failing to oppose the motion, Paradise has not met its burden of justifying its objections pursuant to Coy, supra, 58 Cal.2d at 220-221. Additionally, it

is unclear whether or not Paradise is withholding any responsive documents on the basis of privilege; if it is, then Paradise must provide a privilege log for any withheld documents. A further response is warranted.

Paradise interposed

objections and asserted attorney client privilege and work product doctrine in response to Nos. 29-36. By

failing to oppose the motion, Paradise has not met its burden of justifying its objections pursuant to Coy, supra, 58 Cal.2d at 220-221. Additionally, it is unclear whether or not Paradise is withholding any responsive documents on the basis of privilege; if it is, then Paradise must provide a privilege log for any withheld documents. Further responses are warranted.

Paradise

provided substantive responses to Nos. 19, 20, 24 and 25, but also asserted the attorney

client privilege and work product doctrine. It is unclear whether or not

Paradise is withholding any responsive documents on the basis of privilege; if it is, then Paradise must provide a privilege log for any withheld documents. Further responses are warranted.

In

conclusion, the motion is granted in part (i.e., as to Nos. 7-17, 19-26, and 29-36) and denied in part (i.e., as to No. 18). Paradise is ordered to produce all responsive documents to Nos. 1-6, 27, and 28. Paradise is ordered to provide further responses, and documents responsive, to Plaintiff's Request for Production of Documents, Set One Nos. 7-17, 19-26, and 29-36 within 20 days from the date of the notice of ruling. Paradise is ordered to provide all responsive documents to Nos. 1-6, 27, and 28 within 20 days from the date of the notice of ruling.

Sanctions

Plaintiff seeks

sanctions against Paradise and its now-former counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00 [see calculation in Motion #2].

The Court will award sanctions in the reduced amount of \$585.00 [see calculation in Motion #2]. Sanctions are payable by Paradise within 30 days from the date of the notice of ruling.

6. Motion to Compel Furthers Re:

Form Interrogatories, Set Two Re: Chen

Legal Standard

See Motion #2.

Discussion

Plaintiff

moves the Court for an order compelling Paradise to provide further responses to Plaintiff's Form Interrogatories, Set One (i.e., Nos. 16.1-16.5 and 16.8). Plaintiff also seeks sanctions against Paradise and its counsel of record, Snyder Burnett Egerer, LLP in the amount of \$5,200.00. [FN8]

See synopsis of Motion #1.

Plaintiff fails to address No. 16.2 in its accompanying separate statement; the motion, then, is denied in this regard.

Next, while Chen has provided substantive responses to No. 16.1-16.5, he has failed to separately address each subpart. Further responses are warranted.

Paradise's objections only

response to No. 16.8 is not well-taken; at any rate, by failing to oppose the motion, Paradise has not met its burden of justifying its objections pursuant to Coy, supra, 58 Cal.2d at 220-221. Further, this is a Judicial Council interrogatory developed and approved pursuant to Code of Civil Procedure section 2033.710. Paradise must provide a response that is "as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2030.220, subd. (a)). A further, substantive response addressing all subparts is warranted.

Again, the motion is denied as to No. 16.2 and otherwise granted. Chen is ordered to provide further responses to Plaintiff's Form Interrogatories, Set Two, Nos. 16.1-16.5 and 16.8 within 20 days from the date of the notice of ruling.

Sanctions

Plaintiff seeks

sanctions against Chen and his now-former counsel of record, Snyder Burnett Egerer, LLP in the amount of \$39,275.80 [calculated as follows: \$1,000.00/each of 34 requests pursuant to Code of Civil Procedure sections 2023.040 and 2023.050(a), plus 1 hour reviewing responses and meeting/conferring, plus 1 hour preparing separate statement and motion, plus 1 hour preparing declaration, plus 2 hours reviewing opposition, plus 2 hours preparing reply, plus 1 hour attending hearing at \$650.00/hour, plus filing fees/costs of \$75.80].

First,

the Court does not read the language in Code of Civil Procedure section 2023.050(a) as calling for the imposition of a \$1,000.00 sanction per request. Next, the Court declines to make any of the findings in subdivisions (a); specifically, it does not determine that Paradise or its attorney did not respond in good faith to the subject discovery as a whole and subdivisions (a)(2) and (3) are not applicable under the circumstances presented here.

The

Court will award sanctions in the reduced amount of \$585.00 [see calculation in Motion #2]. Sanctions are payable by Paradise within 30 days from the date of the notice of ruling.

7. Plaintiff Juan Daniel

Aceituno De La Rosa's Motion to Compel Furthers: Re: Request for Production of Documents, Set Two Re: Chen

Legal Standard

See Motion #5.

Discussion

Plaintiff

moves the Court for an order compelling Chen to provide further responses to Plaintiff's Request for Production of Documents, Set Two (i.e., No. 50). Plaintiff also seeks sanctions against Chen and his counsel of record, Snyder Burnett Egerer, LLP in the amount of \$6,275.80. [FN9]

See synopsis of Motion #1.

Chen

advised, in its substantive response to Nos. 50, that he would produce documents. No documents, however, were produced. The motion is granted, in that Chen is ordered to provide a further response within 20 days from the date of the notice of ruling clarifying that production is being made in full and to produce all responsive documents to No. 50.

Sanctions

Plaintiff seeks

sanctions against Chen and his now-former counsel of record, Snyder Burnett Egerer, LLP in the amount of \$6,275.80 [calculated as follows: \$1,000.00 pursuant to Code of Civil Procedure sections 2023.040 and 2023.050(a), plus 1 hour reviewing responses and meeting/confering, plus 1 hour preparing separate statement and motion, plus 1 hour preparing declaration, plus 2 hours reviewing opposition, plus 2 hours preparing reply, plus 1 hour attending hearing at \$650.00/hour, plus filing fees/costs of \$75.80].

The

Court declines Code of Civil Procedure section 2023.050 sanctions, for the reasons identified in the analysis on Motion #5; more specifically the Court does not determine that Chen or its attorney did not respond in good faith to the subject discovery and subdivisions (a)(2) and (3) are not applicable under the circumstances presented here.

The

Court will award sanctions in the reduced amount of \$585.00 [see calculation in Motion #2]. Sanctions are payable by Chen within 30 days from the date of the notice of ruling.

[FN1] The Court observes that three

Substitutions of Attorney were filed on June 18, 2026 (i.e., subsequent to the filing of these instant motions), wherein Snyder Burnett Egerer, LLP substituted out as counsel for Paradise, Chen, and Nice Day.

[FN2] While not identified in the

notice of motion, it is evident from Plaintiff's accompanying separate statement and Goncuian's March 30, 2026 letter that Plaintiff also seeks further responses to Nos. 17.1 and 20.1.

[FN3] See footnote #1.

[FN4] See footnote #1.

[FN5] See footnote #2.

[FN6] While not identified in the notice of motion, it is evident from Plaintiff's accompanying separate statement and Goncuian's March 30, 2026 letter that Plaintiff also seeks a further response to No. 15.

[FN7] See footnote #1. Plaintiff seeks sanctions in the amount of \$1,000.00/request, and cites to Code of Civil Procedure section 2023.050 in support thereof (i.e., "(a) Notwithstanding any other law, and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose a one-thousand-dollar (\$1,000) sanction, payable to the requesting party, upon a party, person, or attorney if, upon reviewing a request for a sanction made pursuant to Section 2023.040, the court finds any of the following: (1) The party, person, or attorney did not respond in good faith to a request for the production of documents made pursuant to Section 2020.010, 2020.410, 2020.510, or 2025.210, or to an inspection demand made pursuant to Section 2031.010. (2) The party, person, or attorney produced requested documents within seven days before the court was scheduled to hear a motion to compel production of the records pursuant to Section 2025.450, 2025.480, or 2031.320 that is filed by the requesting party as a result of the other party's, person's, or attorney's failure to respond in good faith. (3) The party, person, or attorney failed to confer in person, by telephone, letter, or other means of communication in writing, as defined in Section 250 of the Evidence Code, with the party or attorney requesting the documents in a reasonable and good faith attempt to resolve informally any dispute concerning the request. . . (c) The court may excuse the imposition of the sanction required by subdivision (a) if the court makes written findings that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

[FN8] See footnote #1.

[FN9] See footnote #1. Plaintiff seeks additional Code of

Civil Procedure section 2023.050 sanctions (see Motion #5).